

Shailendra Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 2 December 2009 · Writ-C No. 64797 of 2009 · **Assessment and recovery quashed; proceed afresh after opportunity.**

HEADNOTE

Assessment after a 6.11.2007 checking, and the recovery citation that followed, were quashed because the U.P. Electricity Supply Code, 2005 assessment procedure was not followed: the 17.12.2007 notice gave no details or breakup of how the amount was calculated, so the consumer could not reply effectively. Applying *Ashok Kumar*, the Division Bench set aside the assessment and citation, leaving the assessing authority free to proceed afresh after opportunity.

FACTUAL SUMMARY

A checking on 6 November 2007 was followed by an assessment notice dated 17 December 2007 and a recovery citation dated 15 September 2009. Shailendra Kumar challenged both, alleging that the assessing authority had not issued a show-cause notice setting out how the assessed amount was calculated and had not given adequate opportunity to reply under the U.P. Electricity Supply Code, 2005. Counsel for U.P. Power Corporation did not defend the assessment and asked that the matter be remanded to proceed afresh.

REUSABLE CONSTRUCTIONS

1. An assessment notice that does not give details and breakup of how the assessed amount was calculated, so the consumer can give an effective reply, does not satisfy the assessment procedure in the U.P. Electricity Supply Code, 2005. ¶ 2
2. Recovery, including a citation, founded on such a non-compliant assessment is also quashed; the assessing authority may proceed afresh after giving the consumer opportunity and pass a fresh order in accordance with law. ¶ 2

HOLDING-UNITS

HOLDING-UNIT · UP-2005::assessment

assessment notice, opportunity and recovery

HOLDING

The procedure for assessment in the U.P. Electricity Supply Code, 2005 had not been followed: the assessment notice dated 17.12.2007 did not give details or breakup of how the amount was arrived at, and the consumer was not given adequate opportunity to reply. Following *Ashok Kumar*, the assessment order and the recovery proceedings including the citation dated 15.9.2009 were quashed, with liberty to the assessing authority to proceed afresh after giving opportunity and to pass a fresh order in accordance with law. ¶ 2

FLAG order invokes Supply Code 2005 assessment procedure without numbering a clause

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ANY AMOUNT WAS ACTUALLY DUE ON THE 6.11.2007 CHECKING

Merits of liability left to a fresh assessment after opportunity. ¶ 2

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Ashok Kumar v. State of U.P.</i> 2008 ADJ (6) 660			2	Referred

